

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DONNELL MAY,

Plaintiff,

Case No. 04-CV-3277 (ARR) (LB)

-against-

**SECOND AMENDED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER
DOUGLAS CARR (SHIELD NO. 4437), POLICE
OFFICER EDWARD BRANCH (SHIELD NO.
5180), and SERGEANT EGIDIO GONZALEZ
(SHIELD NO. 1773),

Defendants.

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INTRODUCTORY STATEMENT

1. This is an action for damages sustained by plaintiff against police officers of the New York City Police Department, who unlawfully arrested him and subjected him to an illegal search and seizure and excessive force, and against the City of New York, as the supervisory body responsible for the conduct of the defendants and for its failure to take corrective action with respect to police personnel whose vicious propensities were notorious, to assure proper training and supervision of the personnel, or to implement meaningful procedures to discourage lawless official conduct. The City of New York is sued as a person under 42 U.S.C. Section 1983.

JURISDICTION

2. This action arises under Sections 1983 and 1988 of Title 42 of the United States Code, and the Fourth Amendment to the Constitution of the United States.

PARTIES

3. At all times relevant to the allegations of this complaint, plaintiff (“plaintiff”) is an individual residing in the County of New York, State of New York.

4. At all times relevant to the allegations of this complaint, defendant police officer Carr, defendant police officer Edward Branch, and defendant Sergeant Egidio Gonzalez (collectively “defendant police officers”) were employed by the New York City Police Department to perform duties in the City of New York.

5. At all times relevant, defendant police officers above-named were acting in the capacity of agents, servants and employees of defendant City of New York and are sued individually and in their official capacities.

6. At all times relevant, defendant City of New York was a municipal corporation duly formed under the laws of New York State, and was the employer and supervisor of defendant police officers. As such, it was responsible for defendants' training, supervision and conduct. It was also responsible, under law, for enforcing the regulations of the New York City Police Department and for ensuring that City of New York police personnel obey the laws of the State of New York and of the United States.

7. At all times relevant hereto and in all their actions described herein, defendant police officers were acting under color of law and pursuant to their authority as police personnel.

FACTUAL ALLEGATIONS

8. On March 5, 2004, at approximately 1:30 p.m., plaintiff was lawfully walking on Sterling Place, Brooklyn, New York, when three plainclothes police officers exited their unmarked vehicle and, without warning, ran towards plaintiff.

9. One of the police officers punched plaintiff in the face, kneed and kicked him. The officer then grabbed plaintiff around the throat and began strangling him, stating, "Spit up the drugs, spit up the drugs. We have your man in the car who sold you the drugs." Plaintiff responded by trying to explain to the officers that he did not buy any drugs.

10. Defendants ignored plaintiff's response and began to search him by removing the contents of all his pockets. When the search of plaintiff resulted in the finding of no drugs, plaintiff was arrested anyway for possession of a controlled substance in the seventh degree, resisting arrest, and tampering with evidence.

11. Plaintiff was brought to the 77th Precinct, on Utica Avenue, where he was searched again and then strip searched, which resulted in defendants finding no illegal substances.

12. One of the officers kept asking plaintiff to sign a confession, which plaintiff refused to do. The officer told plaintiff that he would be tortured until he confessed, that is, he would be kept in the precinct without water, medical attention, food or phone calls. Plaintiff still refused to confess.

13. Plaintiff was then transported to Brooklyn Central Booking for processing, where he was detained for approximately four hours.

14. Plaintiff was detained in a holding cell until the Kings County District Attorney's Office, having reviewed the charges and evidence, declined to prosecute plaintiff. Plaintiff was then released from Brooklyn Central Bookings at approximately 4:00 a.m., having never appeared before a judge.

FEDERAL CAUSES OF ACTION

15. Each and every allegation set forth in Paragraphs "1" through "14" is incorporated herein by reference.

16. The above-described actions and omissions, engaged in under color of state authority by defendants, including defendant City of New York, responsible because of its authorization, condonation and ratification thereof for the acts of its agents, deprived plaintiffs of the rights secured to them by the Constitution of the United States, including, but not limited to:

- a. his Fourth Amendment right to be free from illegal searches and seizures;
- b. his Fourth Amendment right to be free from excessive force utilized by the police in the effect of making an arrest; and
- c. his Fourth Amendment right to be free from false arrest and imprisonment;

MUNICIPAL LIABILITY PER 42 U.S.C. § 1983

17. The aforesaid event was not an isolated incident. The City of New York has been aware for years (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of its police officers are insufficiently trained on the laws of false arrest/false imprisonment and malicious prosecution. The City is further aware that such improper training has often

resulted in a deprivation of civil rights. Despite such notice, the City has failed to take corrective action. This failure caused the officers in the present case to violate Gantt's civil rights.

18. The City of New York is also liable because it has been on notice that the defendant police officers lack the objectivity, temperament, maturity, and discretion to be members of the NYPD. Despite such notice, the City has retained the individual defendants as police officers. This conduct amounted to negligence and deliberate indifference to the rights of citizens such as the plaintiff.

19. The City of New York is also liable under the doctrine of vicarious liability because the individual defendants were acting within the scope of their employment at the time of their alleged actions.

ATTORNEY'S FEES

20. Plaintiffs are entitled to an award of attorney's fees, pursuant to 42 U.S.C. 1988.

WHEREFORE, plaintiffs each demand the following relief, jointly and severally, against all defendants:

- a. Compensatory damages in the amount to be determined at trial;
- b. Punitive damages in the amount of to be determined at trial;
- c. Attorneys' fees pursuant to 42 U.S.C. 1988; and
- d. Such other and further relief as to the Court seems just and proper.

DATED: Tuxedo, NY
July 5, 2005

Respectfully,

COBB & COBB

By: /s/
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